

SETTLEMENT AGREEMENT AND RELEASE

The parties to this Settlement Agreement and Release ("Agreement") are Brian M. Ames ("Relator") and the Brecksville-Broadview Heights City School District Board of Education, including all of its current and former members, officers, employees and agents, in both their individual and official capacities (hereinafter referred to collectively as the "Board").

WHEREAS, Relator filed a complaint against the Board on July 8, 2025, in the Cuyahoga County Court of Common Pleas, captioned *State ex rel. Ames v. Brecksville-Broadview Heights City School District Board of Education, et al.*, Case No. CV 25 120434, alleging the Board failed to comply with Section 121.22 of the Ohio Revised Code seeking declaratory judgment, injunctive relief and statutory damages against the Board (the "Open Meetings Litigation"); and

WHEREAS, Relator has separately threatened litigation regarding alleged violations of the Ohio Public Records Act (the "Public Records Litigation") (collectively with the Open Meetings Litigation, the "Litigation"); and

WHEREAS, Relator and the Board for sound reasons and to avoid further costs, desire to resolve fully and finally Relator's claims and any and all differences and claims that might otherwise arise out of the facts and circumstances alleged in the Litigation, without making an admission of liability on the part of any Party, which liability is expressly denied;

NOW, THEREFORE, in consideration of the mutual promises set forth below, the Parties agree as follows:

1. **Payment.** In consideration for the promises Relator has made in this Agreement, the Board agrees to cause payment to be made to Relator as set forth in this Section.
 - a. **Statutory Costs.** One Thousand Five Hundred Dollars (\$1,500.00) in civil forfeitures for the Open Meetings Litigation and One Thousand Dollars (\$1,000.00) in statutory damages for the Public Records Litigation. Said payment shall be made via check made out to "Brian M. Ames" and delivered to Barry M. Ward, attorney for Relator, at 304 N. Cleveland-Massillon Road, Akron, Ohio 44333.
 - b. **Attorney's Fees.** Four Thousand Dollars (\$4,000.00) in attorney's fees and Two Hundred Fifty-Eight Dollars and Ninety-Five Cents (\$258.95) in court costs. Said payment shall be made via check made out to "Barry M. Ward Co. LPA" and delivered to Barry M. Ward, attorney for Relator, at 304 N. Cleveland-Massillon Road, Akron, Ohio 44333.
 - c. **Timing of Payments.** The payments set forth in Sections 1(a) and (b), above, shall collectively be referred to herein as the "Settlement Payment." The Board shall issue the Settlement Payment within twenty (20) days of the Board's approving the fully executed Agreement. No interest shall accrue as to any aspect of this Settlement Payment, except in the event of material default.

- d. **Taxes.** The Board or its insurer may issue a Form 1099 for the Settlement Payment made hereunder in accordance with applicable Internal Revenue Code and Internal Revenue Service requirements. Relator acknowledges and agrees to assume full responsibility for the payment of any federal, state and/or local taxes, including any penalties or interest that may be owed by Relator or Relator's counsel by virtue of Relator's receipt of the payment provided for herein and Relator agrees to hold harmless, indemnify, and save the Board and its insurer from payments of any applicable federal, state, or local taxes, penalties or interest for which the Board might become liable by virtue of Relator and/or Relator's counsel's failure to pay same. Relator further agrees and acknowledges that the Board, the attorneys for the Board, and the Board's insurer have not made any representations concerning the ultimate tax treatment of the funds paid hereunder, and Relator will rely upon the advice of her own attorneys and tax professionals with respect thereto. The Board and/or its insurer also reserves the right to file any forms and statements as may be required by law with the Internal Revenue Service and any other state or local taxing agency or other governmental agency.
- e. Except for the Settlement Payment detailed in Sections 1(a) and (b), above, the Parties are responsible for and will bear their respective attorneys' fees in connection with the Litigation.

2. Additional Commitments by the Board.

- a. The Board shall ensure it keeps minutes of its meetings, including special meetings and Board committee meetings, that contain all information required by law.
 - b. The Board shall ensure it provides notice of its meetings, including special meetings and Board committee meetings, in compliance with Board Policy 0164 and R.C. 121.22(F).
 - c. The Board shall ensure consent agenda items are confined to those set forth in Board Policy 0165.1.
3. **Dismissal of Litigation.** Within three (3) business days of Relator's receipt of the Settlement Payment, Relator shall file a *Voluntary Dismissal with Prejudice* with the Court pertaining to the Open Meetings Litigation. At that point, the Litigation shall be deemed settled, and Relator shall discontinue all claims regarding, relating to, or arising out of the facts and circumstances alleged in the Litigation or which existed at any time prior to the Parties' execution of this Agreement.
4. **Release of Claims.** By this Agreement, Relator for himself and for his heirs, personal representatives, assigns, successors, attorneys, and agents, hereby forever releases, holds harmless, discharges and acquits the Board and its respective predecessors, successors, administrators, assigns, insurers, reinsurers, agents, employees, officers, directors, board members, and attorneys from any and all claims and demands, past, present or future, known or unknown, and all manner of action and actions, causes of action, suits, administrative proceedings, debts, dues, sums of money, accounts, reckonings, bonds, bills,

specialties, covenants, contracts, controversies, agreements, promises, variances, torts, trespasses, damages, judgments, executions, warranties, claims and demands whatsoever, in law or in equity, that Relator ever had or now has or in the future may have by reason of any and all claims that were actually asserted, or that might have been asserted or could have been asserted, by him in connection with the facts and circumstances alleged in the Litigation, including, but not limited to, all claims for public records requests, claims arising under R.C. 121.22, et. seq. and R.C. 149.43, et. seq., any and all claims for spoliation, payments (statutory or otherwise), interest, lost profits, consequential damages, attorneys' fees, and punitive damages.

It is the intention of the Parties that this Agreement shall be a full, complete and final release settling all disputes arising from or relating to the facts and circumstances alleged in the Litigation or which existed at any time prior to the Parties' execution of this Agreement, and severing all relationships, rights, liabilities, obligations and duties of the Board with respect to Relator regarding all claims, demands, actions, obligations, damages, costs, liens, causes of action and/or liabilities of any kind or nature whatsoever whether known or unknown, direct or indirect, foreseen or unforeseen, which have been raised or could have been raised in connection with all claims and allegations arising from or relating to the facts and circumstances alleged in the Litigation or which existed at any time prior to the Parties' execution of this Agreement, except as expressly excluded or reserved herein.

The Parties acknowledge that they might hereafter discover facts different from or in addition to those they now know or believe to be true with respect to the released claims, and they expressly agree to assume the risk of possible discovery of additional or different facts, and further agree that the Agreement shall be and remain effective in all respects regardless of such additional or different discovered facts.

5. **No Admission.** It is agreed and understood by the Parties that the execution of this Agreement by any Party does not constitute an admission of any fault or liability whatsoever by any of the Parties hereto with respect to any of the claims that were made or could have been made in connection with the Litigation.

Except for the limited purpose of enforcing the Parties' contractual rights and obligations under this Agreement, this Agreement, and any negotiations or proceedings relating to it, shall not be described as, construed as, used, offered or received against any Party as an admission, or as evidence of an admission: (a) of the merits or lack thereof of the claims or defenses asserted by either Party; (b) of any liability, negligence, fault, breach of duty, wrongful act, misrepresentation or omission, violation of any law or statute of any jurisdiction, or wrongdoing of or by either Party; or (c) that either Party or any other person or entity has in fact suffered any damage, or that either Party is liable to the other or to any person or entity for any reason. This Agreement merely constitutes a compromise and settlement of disputed claims.

Pursuant to Ohio Rule of Evidence 408 and any similar provisions under the laws of any state, neither this Agreement nor any related documents filed or created in connection with this Agreement will be admissible in evidence in any proceeding, except as necessary to approve, interpret or enforce this Agreement.

6. **Interpretation.** The Parties agree that they have fully negotiated the terms of this Agreement and that its terms, provisions, and conditions shall not be interpreted or construed against either Party.
7. **Governing Law; Jurisdiction.** This Agreement may only be enforced in the Cuyahoga County Court of Common Pleas in Ohio. In addition, this Agreement shall only be construed according to the laws of the State of Ohio.
8. **Effect of Agreement.** This Agreement may be pleaded as a full and complete defense to, and may be used as the basis for an injunction against, any action, suit or other proceeding that is instituted, prosecuted or attempted in breach of this Agreement. In the event of any litigation, including any appeals, in connection with the breach, enforcement, or interpretation of this Agreement, including, without limitation, any action seeking declaratory relief, equitable relief, injunctive relief, or any other action at law for damages, the prevailing party shall recover all reasonable attorney fees and costs incurred in connection therewith.
9. **Waiver.** The failure or delay of any Party in exercising their rights under this Agreement in any instance shall not constitute a waiver or estoppel as to such rights in that, or any other, instance. Any Party shall not be deemed to have waived any rights under this Agreement except by a writing signed by that Party.
10. **Validity.** If any provision or portion of a provision of this Agreement is declared null and void or unenforceable by a court or tribunal having jurisdiction, the validity of the remaining parts, terms, or provisions of the Agreement shall not be affected thereby and such illegal or invalid part, term, or provision shall be deemed not to be part of the Agreement.
11. **Entire Agreement.** This Agreement sets forth the entire agreement and understanding between the Parties and supersedes any prior oral or written agreements or understandings between them regarding its subject matter. The Parties acknowledge that they have not relied on any promises, or agreements of any kind made to the other in connection with their respective decisions to make this Agreement, except for those set forth in this Agreement.
12. **Counterparts.** This Agreement may be executed by electronic mail, facsimile or in counterparts, each of which shall constitute an original, but all of which taken together shall constitute only one Agreement.

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IN WITNESS WHEREOF, the aforesaid Parties have caused this full and final Settlement Agreement and Release to be executed as of the day and year first above written.

**On Behalf of the Brecksville-Broadview
Heights City School District Board of
Education**

On Behalf of Himself



Superintendent

Brian M. Ames

Date:

Date: August 14, 2025